

26STCV05418 26STCV05418

County: los-angeles

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Case Number: 26STCV05418 Hearing Date: June 26, 2026 Dept: 307

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TENTATIVE RULING 9:15

a.m., Friday, June 26, 2026

MATTHEW

ISAACKS v. GENERAL MOTORS, LLC, et al. [26STCV05418]

DEMURRER

WITH A MOTION TO STRIKE OF DEFENDANT GENERAL MOTORS, LLC AS TO THE FIRST
AMENDED COMPLAINT

MEET AND

CONFER: DISPUTED. While

GM's counsel contends that the parties met and conferred telephonically,
Plaintiff denies that a telephonic conference occurred on May 19, 2026. (See
Opp., at p. 2-4.)

TIMELINE:

Lemon law action

8/12/2023: Plaintiff Matthew Isaacks

("Plaintiff") purchases a new 2024 GMC Sierra 3500 HD (the "Vehicle") from Defendant
Chavez Buick GMC, Inc. ("CB-GMC") pursuant to a Retail Installment Sale
Contract. The Vehicle was manufactured by Defendant General Motors, LLC ("GM").
GM issues a written warranty for the Vehicle in connection with the purchase.

Thereafter,

within the first year after the sale, the Vehicle begins to show defects and

nonconformities to the warranty.

9/12/2023 to 11/28/2025: Plaintiff seeks repairs

from CB-GMC, an authorized repair facility for GM, on five occasions. After all five repair visits, CB-GMC's service advisors represent to Plaintiff that the Vehicle had been fixed, but the Vehicle was never adequately repaired.

Thereafter,

Plaintiff seeks additional (unsuccessful) repairs between at least 10/18/2024 and 11/28/2025.

2/17/2026: Plaintiff files the Complaint.[1]

The operative First Amended Complaint, filed 4/22/2026, alleges causes of action for:

1. Violation of the Lemon Law
2. Breach of Implied Warranty of Merchantability
3. Negligent Repair
4. Misrepresentation
5. Violation of the Magnuson-Moss Warranty Federal Trade Commission Improvement Act

5/22/2026: GM files this Demurrer with Motion

to Strike, which is followed by Plaintiff's Opposition (5/26/2026) and GM's Reply (6/18/2026).

TENTATIVE

RULING: DEMURRER OF DEFENDANT GENERAL MOTORS, LLC is SUSTAINED with LEAVE TO AMEND.

MOTION

TO STRIKE OF DEFENDANT GENERAL MOTORS, LLC is GRANTED.

I. DEMURRER

– SUSTAINED with LEAVE TO AMEND

GM

demurs to Plaintiff's fourth cause of action for misrepresentation pursuant to Code of Civil Procedure, section 430.10, subdivision (e). Specifically, GM argues that Plaintiff has not stated his claim for misrepresentation with the requisite level of particularity applied to fraud claims. Fraud must be pled specifically— "general and conclusory allegations do not suffice." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645; see Linear Technology Corp. v. Applied Materials, Inc. (2007) 152 Cal.App.4th 115, 132.) "The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157 (Tarmann).)

Here,

Plaintiff alleges that GM falsely represented to Plaintiff that: (1) the Vehicle was "safe to drive," (2) that the Vehicle had been properly serviced and that there would be no further problems with the Vehicle, and (3) that the Vehicle did not qualify for repurchase under the Song-Beverly Act. (FAC, ¶¶ 121-124.) Plaintiff alleges that within the warranty period, Plaintiff sought repairs for various "defects" in the Vehicle. (Id. ¶ 39.) At each of Plaintiff's warranty repair visits, Defendants "purported to service" the Vehicle, but the Vehicle was never repaired. (Id. ¶¶ 40-41.) Plaintiff identifies five specific occasions on which he sought repairs from GM's authorized representative, CB-GMC, for the Vehicle's body and/or transmission: September 2023, December 2023, October 2024, August 2025, and August to November 2025. (Id. ¶ 51.) At the end of each of these repair visits, CB-GMC's service representatives (acting as agents of GM with authority to speak on behalf of GM regarding the condition and safety of the Vehicle) made false oral representations to Plaintiff in person at the CB-GMC service facility regarding the safety, repairs, and status of the Vehicle. In contrast to the original Complaint, the FAC now identifies the specific dates on which these representations were made, the names of the service advisors with whom Plaintiff spoke, their authority to speak on behalf of both CB-GMC and GM, and the contents of their false representations regarding the Vehicle's repairs. (Id. ¶ 56.) Plaintiff alleges that on each occasion, the service advisors indicated that the Vehicle's repairs had been properly completed, that the Vehicle was safe to drive, and that Plaintiff would experience no further problems with the Vehicle. (Ibid.) However, at the time these representations were made,

the Vehicle's defects had not been adequately corrected, and the Vehicle was not safe to drive. (Ibid.)

While GM

frames these representations as mere opinions, the falsity and verifiability of the above statements to Plaintiff are questions of fact that cannot be resolved at the demurrer stage. Nor are these allegations merely conclusory, as the FAC now adequately states the requisite facts regarding who made the false statements to Plaintiff, their authority to speak on behalf of GM, what specifically was said to Plaintiff about the safety and repair status of the Vehicle, when each of the statements was made to Plaintiff, and where, how, and by what means Plaintiff received these communications from GM's repair representatives. Plaintiff cannot reasonably be expected to plead these representations with any more factual particularity than is currently alleged. Based on the facts alleged, GM has adequate information about the nature, source, and extent of their potential liability for fraud. Accordingly, the Court finds that the first element of Plaintiff's misrepresentation claim is adequately pled.

Next, GM

argues that Plaintiff's allegations with respect to the remaining elements of fraud are merely conclusory and unsupported by factual details. On this point, the Court agrees with GM. Plaintiff's misrepresentation claim essentially parrots the remaining elements of fraud without providing adequate facts to support these conclusions, let alone to overcome the heightened pleading standard. (FAC, ¶¶ 127-131.) While Plaintiff identifies two factual allegations to demonstrate the basis of GM's knowledge of falsity, Plaintiff fails to connect these allegations to all of the alleged misrepresentations regarding Plaintiff's vehicle (as he only makes such an allegation with respect to one of the five misrepresentations) and Plaintiff fails to explain how the purported knowledge of vehicle defects among GM's Legal Staff can be extended to knowledge of the GM's repair facilities or the service advisors directly involved in the alleged misrepresentations. (Id. ¶¶ 56(d), 60.)

Likewise, although Plaintiff contends that GM's intent and the reasonableness of Plaintiff's reliance on the representations can be inferred from context alone, Plaintiff neither provides any legal authority for this proposition nor does he identify a single factual allegation that might support such an inference. Plaintiff must allege specific facts which clarify, for example, GM's motive for misrepresenting the status of the Vehicle's repairs or whether Plaintiff would have different actions but-for the representations by GM's agents. Plaintiff's bare legal conclusions fail to supply the requisite factual

specificity for fraud claims.

With

respect to the damages element, Plaintiff alleges that his Vehicle broke down on March 4, 2026 as a result of transmission failures that had been the subject of prior repair attempts and Plaintiff alleges he has been damaged in an amount in excess of \$35,000.00 as a result of GM's refusal to replace the Vehicle.

(FAC, ¶¶ 61-62, 69.) "Misrepresentation, even maliciously committed, does not support a cause of action unless the plaintiff suffered consequential damages." (Beckwith v. Dahl (2012) 205 Cal.App.4th 1039, 1064.) "If the existence—and not the amount—of damages alleged in a fraud pleading is "too remote, speculative or uncertain," then the pleading cannot state a claim for relief." (Ibid.) Here, the FAC does not clarify how Plaintiff was directly harmed as a result of GM's fraudulent conduct in particular, as opposed to the conduct underlying his Song-Beverly claims. For example, Plaintiff does not allege whether the Vehicle is currently operative, that he was induced to purchase the Vehicle itself because of GM's misrepresentations, or that he had costs related to the breakdown of the Vehicle. Plaintiff must allege more facts that specifically connect the harm to Plaintiff to the alleged fraud itself, such as economic harm arising from the breakdown, additional costs incurred from the repeated repair attempts, or otherwise.

Therefore,

GM's demurrer to the fourth cause of action in the FAC is SUSTAINED with LEAVE TO AMEND.

II. MOTION

TO STRIKE – GRANTED

GM moves

to strike Plaintiff's request for punitive damages from the FAC. Plaintiff is seeking punitive damages both generally and in reference to his lemon law, Magnusson-Moss, and fraud claims. (FAC, ¶¶ 19, 75; Prayer, ¶ 2.) In light of the above ruling on GM's demurrer, the sole remaining causes of action against GM are Plaintiff's claims for violations of the Song Beverly Act and the Magnuson-Moss Act.[2] This

Court has already concluded in its ruling on GM's prior motion to strike that there is no basis for an award of punitive damages for Plaintiff's statutory claims. (Minute Order, 4/22/2026.) First, to prevent double recovery, punitive

damages are not available where a consumer is seeking civil penalties for violations of the Song-Beverly Act. (Troensegaard v. Silvercrest Industries, Inc. (1985) 175 Cal.App.3d 218, 227 ["[W]e believe that by seeking a 'civil penalty' and also attorney's fees and all reasonable expenses as allowed by Civil Code section 1794, plaintiff had in effect elected to waive punitive damages under section 3294."].) Likewise, the Ninth Circuit Court of Appeals has held that punitive damages are not generally recoverable under the Magnuson-Moss Act. (Kelly v. Fleetwood Enterprises, Inc. (9th Cir. 2004) 377 F.3d 1034, 1039.) Thus, Plaintiff cannot recover punitive damages for any of his remaining statutory claims as a matter of law.

While

punitive damages may be recoverable in connection with Plaintiff's fourth cause of action for misrepresentation, Plaintiff has not adequately stated his fraud claim in the FAC. If Plaintiff chooses to amend his fraudulent concealment cause of action, Plaintiff may replead his request for punitive damages in connection with this cause of action only.

Therefore,

GM's Motion to Strike is GRANTED.

Defendant General Motors, LLC to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court website on 6/25/26 at 3:00.

[1] On 4/22/2026, the Court sustains GM's demurrer to Plaintiff's misrepresentation claim with leave to amend and grants GM's motion to strike Plaintiff's request for punitive damages with leave to amend.

[2] As Plaintiff's negligent repair claim expressly excludes GM, it is not a basis for the recovery of punitive damages from GM.